

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LANCE MICHAEL EVANDER,

Petitioner

VS.

MONJA ALINKA WAGNER,

Respondent

) Case Number: FDI-25-802285

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: MARTIN TRIANO

REQUEST FOR ORDER OF CHILD SUPPORT; REQUEST FOR ORDER BIFURCATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Lance Evander (Father) and Respondent Monja Wagner (Mother) married on 6/27/2025 and separated on 9/4/2025, for a marriage of 2 months. The parties have one minor child, Ava Charlotte Wagner (DOB: 7/10/2024, age 2).
- 2) On 7/10/2026, Mother filed a Request for Order. Mother states Ava has lived with Mother in Germany on a full-time basis since her birth. Mother states that after the parties' separated, Father gave up his prior residence in Germany and now resides fulltime in California. Mother states Father periodically travels to Germany and visits with Ava for periods of no more than three hours. Mother states the parties have a premarital agreement and this dissolution does not involve any disputed property or spousal support issues. Mother states she is currently on a three-year job-protected unpaid parental leave provided under German law. Before her leave, Mother earned a salary as a teacher. Mother also earns freelance income from online sales of teaching materials that she creates. Mother states that her freelance income has been approximately \$2,601 per month for the period June 2025 through May 2026, approximately \$1,401 per month for the

1 period January 2026 through May 2026, and \$970 per month for April and May 2026. Mother
2 attributes the decline in sales to her not uploading as many new materials recently while the time
3 she devotes to caring for Ava during the day has increased, and to other market factors outside of
4 her control. However, Mother also states that Ava is in part-time childcare so that Mother can
5 perform her freelance work. Mother states that because of the unexpected decline in her online
6 sales, she requested that she return to teaching, but her employer denied the request because her
7 teaching position has been filled for the duration of her leave and no position is available. Mother
8 states she cannot take up a teaching position in another state or other employment without
9 resigning from her current appointment, which would forfeit her tenure and the benefits tied to it,
10 including her government healthcare subsidy and her accrued civil-service pension. Mother states
11 that between September 2025 and June 2026, Father transferred voluntary support payments to
12 her in the amount of approximately \$1,250 per month. Mother also states that after Mother asked
13 him to increase support, Father sent Mother \$2,040 in a single month (March 2026). Mother
14 states this shows Father's ability to pay at least \$2,000 per month. Mother states Father owns and
15 operates Urban Diversion, a social-club business offering Bay Area events and group travel.
16 There are four Tahoe-area cabin-share properties (Palisades Palace, Vista Villa, Truckee Lodge,
17 and Heavenly Chalet) for which Father sells whole-season cabin-share memberships paid in
18 advance, with the principal season running December through May. Mother also states that Father
19 rents out an apartment on Baker Street in San Francisco, which was rented out throughout 2024.
20 Mother states she believes Father resides at the same address listed as the Urban Diversion
21 business address, and that he frequently stays at the Tahoe-area cabin-share properties himself,
22 which gives him additional rent-free living space. Mother also states Father owns or leases rental,
23 short-term-rental, and cabin-share properties. Mother asks the Court to:

- 24 a. Award Mother guideline child support at an amount no less than \$1,250 per month
25 effective the date Mother filed her Request for Order;
 - 26 b. Order the parties to share work-related childcare costs and reasonable uninsured
27 healthcare costs;
 - 28 c. Make health insurance coverage orders;
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- d. Order Father to file a current Income and Expense Declaration and produce current profit and loss statements, entity tax returns, and bank and expense records for Urban Diversion and his rental and cabin share activities.
- 3) On 7/2/2026, Mother filed an Income and Expense Declaration. Mother states that she is 41 years old and is a tenured teacher for the State of Brandenburg in Germany. Mother states that she is currently on parental leave from her job. However, Mother reports earning \$2,601 on average per month in net self-employment income through the online sale of teaching materials. Mother states she has \$136,100 in cash savings and \$30,000 in real property. Mother's estimated monthly expenses total \$4,400. Mother states that Ava is in her care 100% of the time and that Father has exercised only brief, occasional visits and no overnight care.
- 4) On 7/6/2026, Mother filed a Memorandum of Points and Authorities.
- 5) On 8/18/2026, Mother filed a Supplemental Declaration. Mother states that Father has still not provided the financial documents she seeks. Mother also states that Father's voluntary monthly transfers or child support declined from \$1,272 in June 2026, to \$1,030 in July 2026, to \$278 in August 2026. Mother now asks the Court to:
- a. Order guideline child support based on the evidence before the Court, retroactive to the filing date of the Request for Order pursuant to Family Code section 4009
 - b. Order Petitioner to file and serve a complete Income and Expense Declaration (form FL-150) with all required attachments by a date certain;
 - c. Order Petitioner to serve his preliminary declaration of disclosure (forms FL-140 and FL-142 with all attachments required by form FL-142) by a date certain; and
 - d. Reserve jurisdiction over child support add-ons and over remedies, including under Family Code section 2107, in connection with Petitioner's failure to serve his preliminary declaration of disclosure.
- 6) On 9/11/2026, Father filed a Responsive Declaration. Father states he is a property manager for 4 residential rental properties (Vista Villa, Heavenly Chalet, Truckee Lodge, and Palisades Palace/Sandy Way), 3 of which I own, operating as a sole proprietorship dba "Snowbuddy". Per his 2025 Profit & Loss Statement, gross rental receipts totaled \$411,145.00 (\$34,262. 08/month). Father states necessary cash operating expenses incurred to generate these rents including

1 mortgage interest (\$110,083+), property taxes (\$24,156+), utilities (\$23,866.00), cleaning,
2 maintenance, TOT taxes, and property insurance—totaled \$350,019.58 (\$29,168.30/month).
3 Father states his actual 2025 Net Cash Operating Income available for support across all four
4 rental properties is \$61,125.42 per year (\$5,093.79 per month). Father states his financial
5 situation has worsened year-over-year due to soaring mortgage interest rates, property taxes, and
6 maintenance costs, further compounded by ongoing severe medical issues and the necessity to
7 travel frequently to Germany. Father states his CPA-prepared 2025 Draft Federal Tax Return
8 (Form 1040) reflects an Adjusted Gross Income (AGI) of -\$4,657.00, compared to an AGI of
9 \$58,255.00 in 2024—representing a \$62,912.00 drop in AGI year-over-year. Father states that
10 Urban Diversion is a separate C-Corporation in which he holds a 100% stock interest. Father
11 states he receives \$0 in W2 wages and \$0 in corporate dividend distributions from Urban
12 Diversion. Father states Urban Diversion Urban Diversion operated at a net loss of -\$7,229.28 in
13 2025 and a net loss of -\$34,546.00 in 2024. Father states the corporation carries heavy debt
14 service obligations, including an SBA EIDL Loan (\$288,270.19 balance, \$ 1,811.00/mo
15 payment), a CDC Loan (\$ 18,668.62 balance), an Urban Diversion Business Loan (\$48,344.00
16 balance, \$2,000.00/mo payment), and a Chase Credit Card balance of \$ 11,219.71. Father states
17 that Mother planned, agreed to, and executed a full relocation to the United States in the summer
18 of 2025. Father states that in reliance of the relocation, the parties married in the United States
19 and Father undertook “massive personal and financial sacrifices to prepare a home and family life
20 in California, which ultimately depleted over 70% of my personal savings.” Father states that
21 while he was out to dinner on 9/4/2025, Mother took their infant daughter Ava in the middle of
22 the night and returned to Germany. Father asks the Court to impute Mother with her pre-leave
23 base teaching salary (approximately \$3,215.08 per month) as her earning capacity. Father states
24 that in order to facilitate visitation and exercise parenting time in Berlin, he must rent and
25 maintain lodging during visitation periods and these extraordinary travel and lodging costs.
26 Father states he owes \$11,651 in past-due uninsured medical debt and requests a special hardship
27 deduction under Family Code section 4071. Father also seeks a downward deviation in child
28 support under Family Code section 4057(b)(5) because he is 57 years old with no pension,
29 recovering from major spinal surgery, and is relying entirely on depleted rental cash flow. Father

1 states he has wired to Mother \$24,574.38 during the period November 2024 through July 2026
2 and asks that these payments be credited against any support calculation and that the Court bar
3 retroactive arrearage claims. Father asks the Court to:

- 4 a. Grant Father's motion for status-only bifurcation terminating marital status first;
- 5 b. Deny Mother's request for temporary child support of \$2,580 per month;
- 6 c. Impute earning capacity to Mother for Mother's civil service teaching tenure of \$3,215
7 per month plus \$4,099 per month for her Eduki sales;
- 8 d. Calculate Father's income based on his 2025 net operating cash income of \$5,094 per
9 month and 2025 draft AGI (-\$4,657);
- 10 e. Grant statutory hardship deductions under Fam. Code 4071 for extraordinary medical
11 debt (\$ 11,651.16) and visitation travel expenses under Fam. Code 4062(b)(2);
- 12 f. Consider the parties' vast disparity in financial security, age, and health as special
13 circumstances under Fam. Code 4057(b)(5);
- 14 g. Credit all voluntary support transfers paid by Petitioner (\$24,574.38) against support
15 calculations and deny retroactivity.

16 7) On 9/11/2026, Father filed an Income and Expense Declaration. Father states that he is 57 years
17 old. Father states that he receives on average \$5,093 per month in rental property income and \$0
18 from Urban Diversion. Father states that he has \$109,168 in cash savings, \$0 in investments, and
19 \$957,016 in real and personal property. Father states that his expenses total \$4,650 per month,
20 including \$1,500 per month in rent. Father states that he owes \$215,477 for a business loan,
21 \$11,376 in unpaid medical bills, and \$280,694 for an additional business loan secured by the
22 house. Father states that every 6 – 8 weeks he flies to Germany and spends 2- 3 weeks with the
23 parties' daughter. Father also notes that the cost of living in Germany is 50% lower than in
24 California.

25 8) On 9/16/2026, Mother filed a Reply Declaration wherein she makes very detailed arguments
26 regarding Father's tax returns and financial claims. Mother states that Father may be expensing
27 his visitation travel expenses as business expenses through his business. Mother states that on the
28 morning of 9/4/2025, the day Father states he took Ava without Father's knowledge or consent,
29 Father texted Mother, "I have no issues with you flying home I will buy you the flight." Mother

1 states Father never petitioned Father to immigrate and Father has never filed under the Hague
2 Convention or in any proceeding alleging abduction. Mother states that she objects to Father's
3 declaration (which Mother states Father did not sign) and Father's Exhibit H (which Mother
4 states is an unauthenticated typed list of fifteen messages). Mother states that the messages
5 attributed to her are not in her words.

6 9) On 9/17/2026, Mother filed a Statement of Support Calculations. There is no proposed support
7 calculation attached to Mother's pleading, but Mother states that the figures she argues are the
8 correct inputs to use generates an output of \$2,580 per month in base child support.

9 10) Father did not file a Statement of Support Calculations.

10 11) Also on for hearing is Father's Request for Order filed 7/22/2026 seeking to bifurcate and
11 terminate the parties' marital status.

12 12) On 9/9/2026, Mother filed a Responsive Declaration stating she opposes Father's request to
13 bifurcate and terminate the parties' marital status because she has not yet been served with a
14 complete Preliminary Declaration of Disclosure from Father. Specifically, Father has not served
15 forms FL-140, FL-142, and FL-150 with all attachments required by those forms and by Family
16 Code section 2104. Mother states she is not requesting imposition of the conditions set forth in
17 Family Code section 2337(c)(1) through (9).

18 13) On 9/9/2026, Mother filed a Memorandum of Points and Authorities citing Family Code section
19 2337(b) which requires that the party requesting to bifurcate and terminate marital status "shall"
20 serve on the nonmoving party a preliminary declaration of disclosure "unless it has been served
21 previously, or unless the parties stipulate in writing to defer service of the preliminary declaration
22 of disclosure until a later time." Mother states Father has not yet served a complete Preliminary
23 Declaration of Disclosure and there is no written stipulation deferring disclosure.

24 14) Per the Proof of Service filed 9/9/2026, Mother's Responsive Declaration and Memorandum of
25 Points and Authorities were mailed to Father on 9/9/2026.

26 15) Father did not file a Reply Declaration regarding his request to bifurcate and terminate the
27 parties' marital status.
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1 **B. Findings and Order**

- 2 1) Mother's objection to the Court's considering Father's declaration attached to his 9/11/2026
3 Responsive Declaration is overruled. Father signed pg. 2 of the FL-320 form which states that he
4 declares under penalty of perjury that the information provided in all attachments is true and
5 correct.
- 6 2) Mother's objection to the Court's considering Father's Exhibit H (which Mother states is an
7 unauthenticated typed list of fifteen messages) is sustained.
- 8 3) Effective 7/10/2026 (the date Mother filed her Request for Order) and in accordance with the
9 XSpouse calculation attached hereto and incorporated herein, Father shall pay to Mother \$1,506
10 in guideline child support per month. Commencing October 2026, monthly child support shall be
11 paid to Mother no later than the 5th of each month.
- 12 4) The Court finds that Father owes to Mother child support arrears in the amount of \$1,020 for the
13 period 7/10/2026 – 7/31/2026 and \$3,012 for the period 8/1/2026 – 9/30/2026, for total child
14 support arrears due and owing of \$4,032. The Court finds that Father is owed a credit for the
15 voluntary support amounts Mother states he paid her in the following amounts: \$1,019 paid in
16 July 2026, \$275 paid in August 2026, and \$275 paid in September 2026, which totals \$1,569.
17 Father therefore owes to Mother child support arrears of $\$4,032 - \$1,569 = \$2,463$. Father shall
18 pay this amount to Mother no later than 10/5/2026 (in addition to the amount he owes for child
19 support for October 2026).
- 20 5) The inputs in the XSpouse calculation are based on the following findings and orders:
- 21 a. The Court does not find that Mother presently has the opportunity to earn the income she
22 was previously earning as a tenured teacher before she began her parental leave. Father's
23 request to impute Mother with the income she was previously earning as a tenured
24 teacher before she began her parental leave is denied.
- 25 b. The Court will use the \$2,601 in average monthly self-employment income that Mother
26 reported in her Income and Expense Declaration filed 7/2/2026.
- 27 c. The draft of Father's 2025 tax return shows that he reported receiving a total of \$411,646
28 in rental income and paid \$416,303 in expenses. Adding back in reported depreciation of
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1 \$66,139 in addition to \$25,000 in net operating loss carryover brings Father's total net
2 rental income to \$85,482, which averages out to \$7,207 per month.

3 d. The 2025 profit and loss statement Father attached to his Income and Expense
4 Declaration filed 9/11/2026 for Urban Division shows total income of \$311,945.65 less
5 \$120,840.81 in cost of goods sold less \$198,334.12, resulting in total net operating losses
6 of \$7,229.28. The Court will therefore not include self-employment income for Father
7 from Urban Division.

8 e. The Court does not find that Father is suffering from "extreme financial hardship" under
9 Family Code sections 4070 and 4071 and his request for hardship deductions is denied.

10 6) Father claims that Mother's living expenses in Germany are half of what she would pay if she
11 were living in California. Mother claims that Father is paying for some of his personal expenses
12 through his business. Mother also claims that the amounts Father reports paying through his
13 business for salaries and wages should be added back into his income. Neither party met their
14 burden to prove these claims, and the Court therefore declines to consider those claims at this
15 time. If either party brings a motion to modify the child support order set forth above, the Court's
16 jurisdiction to address those claims at that time is reserved.

17 7) Effective 10/1/2026, the parties shall share equally the following child support add-ons:

18 a. Childcare costs actually incurred related to employment or reasonably necessary
19 education or training for employment skills;

20 b. Reasonable uninsured healthcare costs for the children.

21 8) The procedure for requesting and paying reimbursements for uninsured healthcare costs shall be
22 as set forth in Judicial Council Form FL-192.

23 9) The procedure for requesting and paying reimbursements for qualifying childcare costs shall be
24 as follows. When a party (e.g. Party A) pays for a qualifying expense, within 30 days of paying
25 the expense, Party A shall present to Party B: (a) an itemized statement of charges, (b) proof of
26 payment, and (c) the amount due and owing from Party B. Within 10 days of receiving this
27 information, Party B shall submit a payment to Party A for Party B's share of the expense.

28 10) Mother shall continue to provide health insurance for Ava if available at no or reasonable cost.

29 11) Once Mother's parental leave has ended, Mother shall immediately notify Father.

1 12) The hearing on Father's request to bifurcate and terminate the parties' marital status is hereby
2 continued to **Thursday, 12/17/2026 at 9:00 AM in Dept. 404**. The Court finds that Father has
3 not yet fulfilled the requirement set forth in Family Code section 2337(b).

4 13) Father shall serve on Mother an amended Preliminary Declaration of Disclosure which shall
5 include forms FL-140 and FL-142 with all attachments required by form FL-142 no later than
6 10/31/2026. Father shall thereafter file an amended FL-141 form.

7 14) At least 10 calendar days prior to the next hearing date, both parties may file and serve
8 declarations (not to exceed 5 pages in length, not including exhibits) providing any material
9 updates to the Court regarding Father's request to bifurcate and terminate marital status.

10 15) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	1	2026			
% time with NCP	1.00 %	0.00 %			8737	8780
Filing status	SINGLE	HH/MLA	GUIDELINE	Comb. net spendable	0%	0%
# exemptions	1 *	2 *	Nets(adjusted)	Percent change		
Wages+salary	0	0	Father	Father		
Self-employed income	0	2601	Mother	Payment cost/benefit	-1506	-1338
Other taxable income	7207	0	Total	Net spendable income	4546	4714
TANF+CS received	0	0		Change from guideline	0	168
Other nontaxable income	0	0	Support	% of combined spendable	52%	54%
New spouse income	0	0	Addons	% of saving over guideline	0%	399%
401(k) employee contrib	0	0	Guideln CS	Total taxes	1155	931
Adjustments to income	0	0	S.Clara SS	Dep. exemption value	0	0
SS paid prev marriage	0	0	Total	# withholding allowances	0w	0w
CS paid prev marriage	0	0	-	Net wage paycheck	0	0
Health insurance	0	0	Settings changed			
Other medical expense	0	0		Mother		
Property tax expense	0	0		Payment cost/benefit	1506	1380
Ded interest expense	0	0		Net spendable income	4191	4066
Charitable contributions	0	0	Proposed	Change from guideline	0	-126
Misc tax deductions	0	0	Tactic 9	% of combined spendable	48%	46%
Qual bus income ded	0	0	CS	% of saving over guideline	0%	-299%
Required union dues	0	0	SS	Total taxes	-84	98
Mandatory retirement	0	0	Total	Dep. exemption value	0	0
Hardship deduction	0 *	0 *	Saving	# withholding allowances	0	0w
Other GDL deductions	0	0	Releases	Net wage paycheck	0	0
Child care expenses	0	0	Released to Father			

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	0 - 100	0	0	0	Father	1506	Father	1506	Father
	1 - 99	0	0	0	Father	1506	Father	1506	Father